



Debra L Hartmann  
Managing Editor & Publishing Consultant

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### **Non-Disclosure and Confidentiality Agreement**

This Agreement of Non-Disclosure and Confidentiality (hereby referred to as Agreement) has been made and entered into as of \_\_\_\_\_, between

\_\_\_\_\_  
(Author/Client) and Debra L Hartmann, dba The Pro Book Editor (Provider).

The purpose of this agreement is to specify the clauses under a Non-Disclosure and Confidentiality Agreement. This agreement is signed with the purpose of ensuring all parties to the agreement will not disclose any information shared or discussed between the parties and all information will be treated as confidential, and where indicated, proprietary. The parties agree to enter into a confidential relationship with respect to the disclosure of all shared information and/ or documents.

#### **Terms and Conditions**

1. Confidential information refers to any information that is disclosed by one party to the other, either directly or indirectly in writing or orally. Confidential information does not include any information that the party receiving the information can prove was known earlier in a public capacity and was made available through no fault of the party receiving the information. Confidential information also does not include any information that was available to the receiving party before the signing of the agreement and therefore, invalid under confidentiality restrictions. The party receiving the information is called the Receiving Party and the party disclosing the information is called the Disclosing Party, unless specified as Author/Client or Provider. Author/Client retains all ownership of the confidential information and thus, has the right to disclose (or publish) their materials with or without including information/services from Provider.
2. Confidential information as disclosed by the Author/Client is only to be discussed between the two parties. The receiving party will not disclose any documents or information to anyone. The receiving party will not use the information for any other purpose than is outlined in the free sample offer on the website at [www.theprobookeditor.com](http://www.theprobookeditor.com), consultation requests, and/or service contracts existing or future. Confidential information is the Author/Client's manuscript, any documents, and any written or verbal discussion of said material.
3. The receiving party shall take utmost care to ensure that information received from

the disclosing party is protected.

4. The disclosure of information does not in any way make either party obligatory of any transaction or contract. Both parties reserve the right to termination of discussion as and when they contemplate important.
5. All information provided by the disclosing party is as is and there is no warranty about the accuracy of the same.
6. All hard copy documents will be returned to the Author/Client at the termination of the agreement. All electronic documents and copies of information will be deleted by the Provider at the termination of the agreement after ensuring the Author/Client has the latest version(s).
7. Signing of this agreement does not give either of the parties the patent, mask work, or copyright of the confidential information. Such legality is the Author/Client's responsibility to secure with copyright claim through their country's copyright office, and Provider has no right to any such claim.
8. This agreement is valid indefinitely from the date on which the information is disclosed and shall only be disclosed by the disclosing party or at the request of the disclosing party.
9. The agreement shall bind and inure to the benefit of the parties hereto and their successors and assigns. This document contains the entire non-disclosure agreement between the parties. Any failure to enforce any provision of this agreement shall not constitute a waiver thereof or of any other provision hereof.

Debra L Hartmann; Asheville, NC, USA 28801  
Title: Managing Editor & Publishing Consultant



Author/Client:

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Signature

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Date Signed

*For Author/Client File – There is No Need to Return a Signed Copy to Provider*